

Amendment No. 1 to SB1794

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1794*

House Bill No. 1902

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 44, Chapter 17, is amended by adding the following as a new part:

44-17-801. Part definitions.

As used in this part:

(1) "Animal control authority" means a county or municipal animal shelter, dog pound, or a private humane society with administrative or contractual arrangements with, or support of a local government agency, or a state, county, or municipal law enforcement agency, or any combination thereof and which enforces the animal control laws of the city, county, or state;

(2) "Animal control officer":

(A) Means an individual employed, contracted with, or appointed by the animal control authority for the purpose of aiding in the enforcement of this part or any other law or ordinance relating to investigating and enforcing violations relating to animal control, cruelty, or seizure and impoundment of animals; and

(B) Includes any state or local law enforcement officer or other employee whose duties in whole or in part include assignments that involve the seizure and impoundment of an animal;

(3) "Bite" means a penetration to the skin with teeth and with blood appearing in the wound;

(4) "Court" means whatever first tier hearing system the government entity uses for a dangerous dog hearing, including, but not limited to, code enforcement, hearing officer, a representative of animal control, or any other similar fact-finding body. The hearing must be considered administrative in nature, with relaxed rules of evidence, except as it relates to hearsay as described in § 44-17-802(c)(8);

(5) "Dangerous dog" means any dog designated by a court that:

(A) Inflicts severe injury or death on a human being without provocation or justification on public or private property;

(B) Kills a domestic animal without provocation or justification while the dog is off the owner's property;

(C) Has been previously found to be potentially dangerous because of injury inflicted on a human, the owner having received notice of such and the dog again aggressively bites, attacks, or endangers the safety of humans; or

(D) Has been previously declared dangerous by a court of law;

(6) "Domestic animal" means all domesticated animals, including, but not limited to, an equine or bovine animal, goat, sheep, swine, cat, dog, all avian species, or other domesticated beast or bird;

(7) "Harbor" means to provide care, shelter, protection, refuge, food, or nourishment to an animal;

(8) "Owner" means:

(A) A person over eighteen (18) years of age, or any firm, corporation, or organization which owns, manages, harbors, maintains, or controls an animal, including feeding and sheltering the animal for five (5) or more consecutive days; or

(B) If the animal is owned by a minor, not lawfully having been emancipated, that minor's parent or guardian;

(9) "Potentially dangerous dog" means any dog that:

(A) When unprovoked, aggressively bites a human or a domestic animal either on public or private property;

(B) When unprovoked, chases or approaches a person on any public grounds in a manner that culminates with hostile contact with a person; or

(C) Has a known propensity, tendency, or disposition to attack unprovoked, to cause injury, or otherwise to threaten the safety of humans or domestic animals;

(10) "Proper enclosure" means, while on the owner's property, a dangerous dog is securely confined indoors or in a securely enclosed and locked pen or structure that is suitable to prevent the entry of young children; is designed to prevent the animal from escaping; is of suitable size for the dog; and complies with § 39-14-202;

(11) "Provocation" means an action or activity, whether intentional or unintentional, which would be reasonably expected to cause a normal dog in similar circumstances to react in a manner similar to that shown by the evidence; and

(12) "Severe injury" means a physical injury that results in muscle tears, broken bones, lacerations requiring multiple sutures, or any physical injury that requires corrective or cosmetic surgery or is life threatening or results in death.

44-17-802. Potentially dangerous dog or dangerous dog.

(a) If a person reports an incident with a potentially dangerous dog, then the local animal control authority shall investigate the incident and determine whether probable cause exists to find that the dog is a potentially dangerous dog or dangerous

dog within sixty (60) days. If an animal control authority has investigated and determined that there is probable cause to believe that a dog is a potentially dangerous dog or dangerous dog, then the animal control authority must issue a citation for the dog's owner to appear in court for the purpose of determining whether or not the dog in question should be designated as a potentially dangerous dog or dangerous dog.

(b)

(1) Except as provided in subdivision (b)(2), the citation must instruct the owner to keep the dog at the owner's home during the investigation and appellate proceedings, unless the animal control authority makes a written factual finding that:

(A) The owner cannot safely keep the dog at home;

(B) There is an immediate risk that the owner may transfer the dog out of the jurisdiction of the court; or

(C) The dog, based on the incident in question, the dog's history, and the actions of the owner raise an immediate threat to public safety.

(2) The owner may make arrangements to have the dog held at a private boarding facility, at the owner's cost; provided, that the boarding facility agrees in writing that the dog may not be transferred therefrom without the agreement of the animal control authority.

(c)

(1) Except by agreement of the owner and prosecution and with the approval of the court, the hearing must be held not less than five (5) business days and not more than fifteen (15) business days after service of citation upon the owner.

(2) The owner must be given written notice at least five (5) business days prior to the hearing.

(3) The notice must contain a written description of the charges.

(4) The notice must state that the owner is entitled to the complete animal control investigative file at least one (1) business day before the hearing.

(5) The notice must advise the owner of the right to hire an attorney.

(6) The notice must advise the owner that the burden of proof is upon the prosecution to prove by clear and convincing evidence that the dog is a potentially dangerous dog or dangerous dog.

(7) The owner may subpoena witnesses.

(8) The owner may cross-examine witnesses.

(9) Hearsay must not be used to establish a fact in court, but may be used to support a fact otherwise proven through direct evidence.

(10) If the dog is designated as potentially dangerous or dangerous, then the court shall include in the order a statement of findings of fact providing the basis for the designation.

(d) The court shall not declare a dog to be a potentially dangerous dog or dangerous dog as a result of injury or damage if:

(1) The threat, injury, or damage was sustained by a person who was, at the time:

(A) Committing a crime upon the premises occupied by the dog's owner;

(B) Committing a trespass upon the premises occupied by the dog's owner; or

(C) Provoking, tormenting, teasing, injuring, abusing, or assaulting the dog or can be shown to have repeatedly provoked, tormented, teased, injured, abused, or assaulted the dog at other times;

(2) The injury or damage was sustained by a domestic animal which, at the time of the injury or damage, was provoking, tormenting, teasing, injuring,

abusing, or assaulting the dog or can be shown to have repeatedly provoked, tormented, teased, injured, abused, or assaulted the dog at other times;

(3) The dog was protecting or defending a person within the immediate vicinity of the dog from an unjustified attack;

(4) Solely because of the dog's particular breed or size;

(5) The injury or damage was sustained by a domestic animal while the dog was working as a hunting dog, herding dog, or predator control dog on the property of, or under the control of, the dog's owner or keeper, and the damage or injury was appropriate to the work of the dog;

(6) The injury to a person or domestic animal occurred while the dog was being used by a law enforcement officer to carry out the officer's official duties;

(7) The dog was a guide dog for the blind or hearing impaired, or a support dog for the physically handicapped, and the injury to a person or domestic animal occurred while the dog was performing duties as expected; or

(8) The court determines based on the totality of the evidence or for other good cause, that the dog is not dangerous or a threat to the community.

(e) Upon designating a dog as a potentially dangerous dog or dangerous dog, the court shall impose restrictions on the owner of such dog as set forth in § 44-17-804 and § 44-17-805 and may impose such additional restrictions as are appropriate under the circumstances of the case.

(f) A person who is subject to the court's restrictions must comply with such restrictions.

(g) A person who has been served with a citation to appear in court for the purpose of determining whether such person's dog is a potentially dangerous dog or dangerous dog shall not transfer ownership of such dog until after the court has issued a ruling on such citation.

(h) A person whose dog has been designated as a potentially dangerous dog or dangerous dog shall not transfer ownership of such dog to another person without:

(1) Having advised the other person that the dog has been designated as a potentially dangerous dog or dangerous dog;

(2) Having advised the other person in writing of the restrictions that have been placed upon the dog; and

(3) Having notified the animal control authority in writing at least fifteen (15) business days prior to such transfer of the name, address, and telephone number of the proposed new owner or custodian, the proposed new location of the dog, and the name and description of the dog.

(i) Within ten (10) business days after a hearing conducted pursuant to this part, the court must notify, by certified mail, the owner of the dog, if absent from the hearing, of the decision and restrictions imposed upon the owner. If a dog is declared to be a potentially dangerous dog or a dangerous dog, then the owner must comply with all restrictions imposed by the court for the time period specified in § 44-17-804 or § 44-17-805.

(j) An owner may appeal the decision of the court de novo to the circuit court, and thereafter to have an appeal on the record to the court of appeal.

44-17-803. Failure to comply with mandatory restrictions.

(a) A person shall not own or possess a potentially dangerous dog or dangerous dog unless the person is in full compliance with all restrictions placed upon such person by the court that has designated the dog as a potentially dangerous dog or dangerous dog.

(b)

(1) If the owner of a potentially dangerous dog or dangerous dog fails to comply with § 44-17-804 or § 44-17-805, then the court may order the animal control authority to seize the dog. The animal control authority may seize the

dog and provide for the impoundment of the dog in the animal shelter or private boarding facility.

(2) The animal control authority may permit the dog to be confined at the owner's expense in a veterinary facility or private boarding facility pending a hearing; provided, that such confinement will ensure the public safety.

(c) If, upon investigation, an animal control officer or law enforcement officer determines that probable cause exists to believe a dog poses an immediate threat to public safety, then the animal control officer or law enforcement officer may immediately seize and impound the dog pending a hearing pursuant to § 44-17-802(b). At the time of impoundment or as soon as practicable thereafter, the officer shall serve the owner of the dog a notice of a hearing to declare the dog a potentially dangerous dog or dangerous dog.

(d) An animal control officer or law enforcement officer may impound any potentially dangerous dog or dangerous dog if the officer has cause to believe that any of the mandatory restrictions upon such dog are not being followed, and the failure to follow such restrictions would likely result in a threat to public safety. The owner of a potentially dangerous dog or dangerous dog shall surrender the dog to any animal control officer or law enforcement officer upon demand. In the event a dog is impounded, the animal control officer or law enforcement officer shall serve a citation upon the owner of the dog for violation of the restrictions.

(e) If a dangerous dog is impounded due to the owner's failure to comply with the mandatory restrictions placed upon such owner by the court, the animal control authority may request that the district attorney general for the county file a petition with the circuit court for the destruction of the dog in accordance with § 44-17-120, a copy of which must be served on the owner.

(f) The court may order the animal control authority to return the dog to the owner, if the owner complies with the mandatory restrictions placed upon such owner by the court on or before the date designated by the court.

(g) This part does not limit the authority of the animal control authority or local government to request that the district attorney general file a petition with the circuit court of the county for the destruction of a dog in accordance with § 44-17-120 or to dispose of animals pursuant to any other applicable law.

(h) The owner shall pay any cost or fee assessed by the municipality or county related to the seizure, acceptance, impoundment, or destruction of the dog. The governing body of the municipality or county may prescribe the amount of the fees.

(i) A court shall not order the destruction of a dog during the pendency of an appeal.

44-17-804. Mandatory restrictions on potentially dangerous dogs.

No later than fifteen (15) business days after the court rules a dog is a potentially dangerous dog and notice is given to the owner, the owner shall:

(1) Allow inspection of the dog and its enclosure by the animal control authority and produce, upon demand, proof of compliance with all court-imposed requirements and restrictions;

(2) Register the dog with the animal control authority for the area in which the dog is kept as provided in § 44-17-806;

(3) Restrain the dog at all times on a six (6) foot non-retractable leash in the immediate control of a person or in a proper enclosure;

(4) Attend and complete a course on commonly accepted dog obedience methods approved by the animal control authority;

(5) Have the dog spayed or neutered at the owner's expense, if the dog has not previously been spayed or neutered;

(6) Have an identification microchip implanted in the dog and provide the serial number of the microchip to the animal control authority;

(7) Post a conspicuous warning sign on the building or enclosure in which the dog resides notifying others that a potentially dangerous dog is housed in the building or enclosure;

(8) Comply with any applicable municipal or county regulation, requirement, or restriction on potentially dangerous dogs; and

(9) Pay the cost of any restriction or requirement.

44-17-805. Mandatory restrictions on dangerous dogs.

No later than fifteen (15) business days after the court rules a dog is a dangerous dog and notice is given to the owner, the owner shall:

(1) Allow inspection of the dog and its enclosure by the animal control authority and produce, upon demand, proof of compliance with all court-imposed requirements and restrictions;

(2) Register the dog with the animal control authority for the area in which the dog is kept as provided in § 44-17-806;

(3) Restrain the dog at all times on a six (6) foot non-retractable leash in the immediate control of a person or in a proper enclosure;

(4) Ensure that the dog does not leave the premises of the owner unless such dog is properly restrained and humanely muzzled for protection of persons and other animals;

(5) Ensure that the dog is never, even with the owner present, allowed to be unrestrained on property that allows the dog direct access to the public;

(6) Attend and complete a training class or behavior modification course approved by the animal control authority that is designed to teach the owner how to deal with, correct, manage, or alter the problem behavior;

(7) Have the dog spayed or neutered at the owner's expense, if the dog has not been previously spayed or neutered;

(8) Have an identification microchip implanted in the dog and provide the serial number of the microchip to the animal control authority;

(9) Have the dog photographed by the animal control authority for future identification purposes;

(10) Obtain liability insurance coverage or show financial responsibility in an amount of at least one hundred thousand dollars (\$100,000) to cover damages resulting from an attack by the dog causing bodily injury or death to a person and provide proof of the required liability insurance coverage or financial responsibility to the animal control authority for the area in which the dog is kept;

(11) Post a conspicuous warning sign on the building or enclosure in which the dog resides notifying others that a dangerous dog is housed in the building or enclosure;

(12) Notify the animal control authority in writing of the location of the dog's residence, temporary or permanent, including notice fifteen (15) days prior to the move of the dog to another residence within the jurisdiction. If the move is outside the jurisdiction, then the owner must also provide notice to the appropriate animal control authority;

(13) Notify the animal control authority in writing of any transfer in ownership of the dog;

(14) Comply with any applicable municipal or county regulation, requirement, or restriction on dangerous dogs; and

(15) Pay the cost of any requirement and restriction.

44-17-806. Establishment of dangerous dog registry.

(a) The animal control authority for each jurisdiction in which a potentially dangerous dog or dangerous dog is kept shall maintain a registry of potentially

dangerous dogs and dangerous dogs, updated annually, including the following for each potentially dangerous dog or dangerous dog:

(1) Proof of:

(A) Liability insurance or financial responsibility for dangerous dogs, as required by § 44-17-805;

(B) Current rabies vaccination records; and

(C) The secure enclosure in which the potentially dangerous dog or dangerous dog will be kept;

(2) Dog owner's or owners' names, address, and contact information;

(3) Veterinarian;

(4) Photograph of the dog;

(5) Sex;

(6) Age;

(7) Weight;

(8) Color and markings;

(9) Whether spayed or neutered;

(10) Microchip or tattoo number;

(11) Acts that resulted in the dog being declared dangerous or potentially dangerous and the associated trial docket information; and

(12) Any other information deemed necessary by the animal control authority.

(b) The animal control authority may charge an annual fee, in addition to any dog licensing fees, to register dangerous dogs.

(c) The animal control authority shall make parts of the registry available for public inquiry on the internet. Only the address of the owner along with the name of the potentially dangerous dog or dangerous dog, the acts that resulted in the dog being

found dangerous, and information necessary to access court records of the adjudication shall be available to the general public.

(d) If there are no additional instances of the behavior that qualify the dog as a potentially dangerous dog or dangerous dog within eighteen (18) months of the date of designation as a potentially dangerous dog, a dog shall automatically be removed from the list of potentially dangerous dogs.

44-17-807. Criminal penalty.

(a) A person who owns or keeps custody or control of a potentially dangerous dog or dangerous dog commits an offense if the person fails to comply with § 44-17-802 (g), (h), (i), or § 44-17-803(a).

(b)

(1) An offense under this section is a Class C misdemeanor.

(2) A second or subsequent offense under this section is a Class B misdemeanor.

(c) It is a defense to prosecution under subsection (a) that:

(1) The person is a veterinarian, peace officer, animal control officer, law enforcement officer, person employed by a recognized animal shelter, or person employed by the state or a political subdivision of the state to deal with stray animals and has temporary ownership, custody, or control of the dog in connection with that position;

(2) The person is an employee of the department of correction or a law enforcement agency and trains or uses dogs for law enforcement or corrections purposes; or

(3) The owner can show proof of provocation by the injured person or domestic animal.

44-17-808. Construction.

(a) This part does not prohibit the destruction of a dog causing death or serious injury to a human pursuant to § 44-17-120.

(b) This section does not limit a municipality or county in placing additional restrictions upon owners of potentially dangerous or dangerous dogs.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.